Wyoming State Data Collection, Transparency and Consent
WyIT.2011

Policy Owner	Department of Enterprise Services, Data Privacy
Policy Contact	Pat Potter, Deputy Chief Data Officer
Policy Approver	Wyoming Data Governance Committee (WDGC)
Effective Date	September 12, 2025
Next Review Date	April 1, 2027
Policy Version	2026-09.1

Scope:

This policy establishes a comprehensive framework for protecting individual privacy rights and ensuring transparent and ethical data practices across all state agencies in Wyoming. This policy does not supersede the requirements of Wyoming Statute 16-4-201 through 205 Wyoming Public Records Act (WPRA).

This policy addresses the collection, use, storage, and disclosure of personal information by Wyoming state agencies, ensuring compliance with privacy principles and legal obligations while maintaining transparency in government data practices.

This policy serves as the state baseline. Agencies may implement more restrictive policies to meet applicable state and federal regulations or agency-specific requirements, provided they do not deviate substantially from this policy. In lieu of agency-specific policies, this policy shall serve as the governing standard.

Authority

This policy is promulgated under the authority of Wyoming State Statute 9-2-2906 and its subsections, the Department of Enterprise Technology Services is required to adopt and enforce information technology standards, and promote efficient use of information technology throughout state government.

Specifically, this policy is further promulgated under the authority of the below listed Wyoming State Statute subsections.

- Implements and maintains an information technology governance program for state agencies (W.S 9-2-2906,(b), (ii));
- Establishes and enforces data security and privacy policies and standards for the state data infrastructure Establishes review criteria for the agencies information technology projects,

procurements and purchases. (W.S 9-2-2906,(b), (iii)); and

Adopts information technology policies and standards and ensures agency compliance with those policies and standards (W.S. 9-2-2906,(b), (vi)).

Audience

This policy applies to all Executive Branch agencies, boards, and commissions staff (collectively referred to as "agencies"). This policy is also applicable to consultants, affiliates, third party vendors and temporary employees that use or store state data.

Definitions

Key Definitions, Acronyms, and Terms

Policy Statements:

1. **POLICY PRECEDENCE AND AGENCY IMPLEMENTATION**
   - 1.1. The agency may create agency-specific policies that meet the outlined scope, purpose, and requirements as stated in this policy. In lieu of agency-specific policies that meet the outlined scope, purpose, and requirements as stated in this policy, this policy shall serve as the governing policy.
     [1], [2], [3]

   - 1.2. Agencies may implement supplemental policies to augment this governing policy as needed. This policy does not supersede any State or Federal regulation and does not override, waive, or provide exemption from the requirements of the Wyoming Public Records Act (Wyoming Statute 16-4-201 through 205). Agencies remain fully obligated to comply with all legal requirements while implementing appropriate privacy safeguards for exempt information.
     [1], [2], [3]

2. **LEGAL COMPLIANCE AND CONSENT**
   - 2.1. Agencies shall adhere to all applicable federal and state laws and regulations governing data collection, storage, usage, protection, and destruction.
     [2], [4], [5], [6], [8], [9], [10], [11], [3]

   - 2.2. Agencies shall collect personal information or data only when:
     - 2.2.1. Authorized or required by Wyoming Statute, or
     - 2.2.2. Voluntary consent is obtained for programs not otherwise authorized.

     [2], [4], [14], [12]

   - 2.3. For statutory collections, agencies must provide clear notice of legal authority.
     [2], [5], [13], [8], [12]

3. **TRANSPARENCY**

3.1. Agencies shall maintain an inventory of the following for each published report, data visualization, analytical product, or public-facing data release that contains or is derived from personal information:

3.1.1. Sources of collected data;

3.1.2. Purposes for which data are being collected;

3.1.3. Date of publication or release; and

3.1.4. Intended audience and distribution method.

Note: When multiple publications derive from identical source material, agencies may create a single inventory entry referencing all related publications.
[2], [4], [14], [5], [3]

3.2. Agency websites publishing analytics or data reports shall include or link to the above data.
[15], [16]

4. **PURPOSE LIMITATION AND DATA MINIMIZATION**

4.1. Data collection shall be limited to specific, legitimate purposes of fulfilling legal obligations or serving the public interest.
[14]

4.2. Only the minimum necessary data shall be collected to achieve the stated purposes.
[9]

4.3. Data shall not be used for incompatible purposes without authorization by law or individual consent.
[2], [4], [14], [9], [12]

5. **ACCOUNTABILITY AND OVERSIGHT**

5.1. Each agency's Agency Privacy Officer (AOP) shall oversee policy compliance and serve as a point of contact for privacy concerns.
[17], [16]

6. **PUBLIC TRANSPARENCY AND ENGAGEMENT**

6.1. Agencies shall engage with the public to raise awareness about data collection practices and individual rights.
[13]

6.2. Accessible channels shall be provided for individuals to request information, file complaints, or seek redress.
[16]

Applicable State Policies, Federal, State or Industry Rules, Laws, and/or Regulations

1. National Institute of Standards and Technology (NIST) SP 800-100
2. National Institute of Standards and Technology (NIST) SP 800-53, Rev 5
3. ISO/IEC 27001
4. National Institute of Standards and Technology (NIST) Privacy Framework
5. National Institute of Standards and Technology (NIST) Cyber Security Framework (CSF) 2.0
6. Wyoming Statute .S. 9-21-101(a)(i)
7. Wyoming Statute .S. 16-4-201 - 16-4-205
8. Privacy Act of 1974, 5 U.S.C. § 552a
9. Health Insurance Privacy and Accountability Act (HIPAA), Security Rule
10. Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. 1232g
11. Gramm-Leach-Bliley Act (GLBA), 15 U.S.C. §§ 6801–6809
12. Fair Information Practice Principles: Collection Limitation; Purpose Specification
13. E-Government Act of 2002, § 208
14. National Institute of Standards and Technology (NIST) SP 800-122
15. WyIT.1004, Web Standards and Compliance Policy
16. Office of Management and Budget (OMB) Memorandum M-17-06, titled Policies for Federal Agency Public Websites and Digital Services
17. WyIT 2006, Agency Official for Privacy (AOP)
18. WyIT 2001, Information Classification
19. WyIT 2001-S1, Data Owner Standard
20. WyIT 2001-S2, Data Steward Standard
21. WyIT 2001-S3, Data Custodian Standard
22. WyIT 2001-S4, Data Domain Standard
23. WyIT 2001-G1, Information Classification Guide
24. WyIT 2001-G2, Information Classification Procedures Guide
25. WyIT 2004, Information Breach, Disclosure, or Data Leak
26. WyIT 2004-GL, Information Breach Response Guide
27. WyIT 2005, Information Residency and Transportation
28. WyIT 2006, Agency Official for Privacy (AOP)
29. WyIT 2009, "Clean Desk" Confidential Information and Sensitive Materials
30. WyIT 3001, General Security/Acceptable Use

Compliance & Exceptions:

Compliance

Employees who violate this policy may be subject to appropriate disciplinary action up to and including discharge as well as both civil and criminal penalties. Non-employees, including, without limitation, contractors, may be subject to termination of contractual agreements, denial of access to IT resources, and other actions as well as both civil and criminal penalties.

Exceptions

Requests for exceptions to this policy shall be reviewed by the Chief Information Security Officer (CISO) and the Chief Information Officer (CIO). Departments requesting exceptions shall provide such requests to the CIO in accordance with WyIT.3002 Policy Exception Request.

The request should specifically state the scope of the exception along with justification for granting the exception, the potential impact or risk attendant upon granting the exception, risk mitigation measures to be undertaken by the IT Department, initiatives, actions and a time-frame for achieving the minimum compliance level with the policies set forth herein. The CIO shall review such requests; confer with the requesting department.

Any exception to established policy shall be defined and tracked as a risk to the state and established mitigating controls monitored by the agency.

Review/Approval:

Date Issued/Review Date

This policy shall be reviewed at least annually and updated / reviewed / approved as defined in the Office of Chief Information Officer (OCIO) Policy lifecycle.

The review and update process shall be coordinated by Governance, Risk and Compliance (GRC), completed by the policy owner and approved through the OCIO policy review workflow.

Approval

This policy as signed by the appropriate officer (listed below) is considered approved and enforced, per Wyoming State Statutes (W.S 9-2-2906,(b), (iii)) and (W.S. 9-2-2906,(b), (vi)).

To obtain a signed copy of this document, contact Enterprise Technology Services Governance, Risk and Compliance (ets-ocio-grc@wyo.gov).

Jeffrey Clines Officer Name	Chief Information Officer Officer Title
_____ Officer's Signature	_____ Date

Revision History

The current version of this policy, as identified in the Revision History below, supersedes all previous documents listed below.

Version	Change	Author(s)	Date of Change
2026-09.1	ETS Director signature	GRC	September 2026

2025-09.2	WyIT 2011, Wyoming State Data Collection, Transparency and Consent, Updated Document Template	Pat Potter	September 2025
UKN	WyIT 2011, Wyoming State Data Collection, Transparency and Consent, Originally Published	Wyoming Data Governance Committee	August 2024